DATA ITEM DESCRIPTION
Title: AIRWORTHINESS AND RELATED SUBSTANTIATION DATA

Number: DI-SAFT-81905A
AMSC Number: N9735
DTIC Applicable: No
Preparing Activity: AS
Applicable Forms: N/A

Approval Date: 20161004
Limitation: N/A
GIDEP Applicable: N/A
Project Number: SAFT-2016-016

Use/relationship:

This DID superseded DI-SAFT-81905.

Airworthiness-related substantiation data is information required by Naval Air Systems Command to support the generation of a Navy Interim Flight Clearance or civil/public aircraft operation determination.

This Data Item Description (DID) contains format and content preparation instructions for the data product generated by the specific and discrete task requirement as delineated in the contract.

This DID contain the format, content and intended use information for the data product resulting from the work task described in the contract.

Requirements:

1. Reference documents. The applicable issue of the documents cited herein, including their approval dates and dates of any applicable amendments, notices, and revisions, shall be as specified in the contract.

2. Format. Contractor format is acceptable except when said forms state otherwise.

3. Content. Airworthiness substantiation data shall include the following:

   a. Scope of the Navy Interim Flight Clearance (IFC) that is sought. State whether the IFC is required for an aircraft (i.e., the aircraft cannot perform under the contract as a civil aircraft due to the inability to comply with civil regulations or aircraft operating limitations) or for an aircraft modification (e.g., changes required to install and operate mission equipment that cannot be fully certified by FAA).

   b. If the required IFC is for an aircraft, provide the following:

      i. A copy of the FAA registration certificate (AC 8050-3).

      ii. A copy of the Airworthiness Certificate (FAA 8100-2 or 8130-7). If this certificate is a Special (8130-7), also include the Operating Limitations

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identified in Part E of form 8130-7.

iii. Inspection Program: If the aircraft is a multi-engine turbine powered airplane, or a turbine powered rotorcraft with a standard airworthiness certificate, provide a copy of the log book page identifying the inspection program applicable to the aircraft. For all turbine powered aircraft with Special Airworthiness Certificates, and for all aircraft with Standard certificates that identified a 14 CFR 91.409(f)(4) programs, provide a copy of the letter from FAA that approves the current inspection program.

iv. Minimum Equipment List (MEL): for all aircraft with Standard certificates for which a MEL exists, provide a copy of the letter from FAA authorizing that aircraft to operate under the provisions of the approved MEL. If no approved MEL exists for the aircraft, then state that the aircraft will abide by the provisions of 14 CFR 91.213 as it relates to inoperative instruments and equipment.

c. If the required IFC is for one or more aircraft modification(s), provide the following for each modification:

i. For aircraft that have Standard, Limited or Restricted certificates or that previously held a Standard, Limited or Restricted certificate, provide the FAA Form 337's and supporting documentation for all Major alterations performed on the aircraft since it left the factory. Note: A Compliance Matrix may be required for non-Supplemental Type Certificates (STC).

ii. For all other aircraft, provide sufficient data to determine that the equipment or provisions for the equipment meet the applicable civil or military standards for the type of aircraft concerned. If this data references FAA regulations as the standard, then provide FAA Form 8110-3 signed by FAA Designated Engineering Representatives (DERs) approving that data. If the modification is a Major Change as defined by 14CFR21.93, provide the FAA's determination as to whether new operating limitations are required.

iii. Identify any portions of the FAA Operating Limitations associated with a Special Airworthiness certificate that do not apply while operating as a Public Aircraft.

iv. Specific instructions for the energizing and de-energizing of equipment that is only FAA approved for captive carry.

v. Specific instructions for the installation of, operation (energizing), and removal of all mission equipment where the FAA approval is only for the provisions to install the special equipment. The removal instructions should include all information for securing cables, plumbing, hoses racks, trays, etc. It should also include instructions on de-energizing all energy sources, electrical, hydraulic, pneumatic etc. These instructions should also include any Weight and Balance data necessary

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for the operation of the aircraft with the equipment installed and removed.

d. Provide a statement acknowledging the following:

i. The owner/operator will comply with all provisions of the FAA Federal Aviation Regulations (14CFR), with the exception of any regulation that is explicitly waived by the Navy IFC when the aircraft operates as a "public aircraft" (e.g., operation outside an FAA approved configuration or, for aircraft with Experimental certificates, operation for compensation or hire).

ii. The owner/operator will make a maintenance record entry when any mission equipment is installed or removed.

iii. The owner/operator will maintain the configuration of the aircraft to conform to the requirements and limitations imposed by the FAA Airworthiness Certificate with the only exceptions being those enumerated in the Navy IFC.

iv. The owner/operator will retain a copy of the Navy IFC on board the aircraft when operated as a public aircraft.

v. This statement should be on corporate letterhead of the owner, and signed by a corporate officer if the owner identified on the registration certificate is a corporate entity.

4. Continued Airworthiness Substantiation Data

a. Continued Airworthiness will be administered through Flight Operations Procedures (FOPs) and Ground Flight Operations Procedures (GOPs) utilizing the following guidelines:

i. Ground and Flight Operations. The Contractor submits the FOPs and GOPs to the Government. The Contractor updates and executes specific written procedures to address all FOPs and GOPs items. The Government Flight Representative (GFR) will act as the "Administrator" and will review and approve the Contractor's procedures as they relate to 14 CFR Part 91 requirements under this contract. The term "certificate holder" as used in 14 CFR Part 91 is replaced with "Contractor" for the purposes of this contract. The Contractor begins flight operations when the procedures have been approved in writing by the GFR. The Contractor is responsible for writing, implementing, and enforcing their procedures and for identifying and correcting deficiencies. The procedures describe aircraft ground and flight operations at all operating facilities. Defense Contract Management Agency (DCMA) Instruction 8210.1 Chapter 3 used as guidance in developing the written procedures. If the Contractor references existing company procedures, operating instructions, etc., in these procedures, the referenced documents are made readily available for review and become part of the GFR approval process.

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ii. The GFR or his designated representative may perform a biannual inspection of the Contractor's operations. The purpose of these inspections is to evaluate the effectiveness of the Contractor's GOPs/FOPs and their compliance with those procedures. If the Contractor is not operating in accordance with GFR approved GOPs and FOPs procedures, the government reserves the right to suspend Contractor operations under the contract.

iii. A GFR or his/her designated representative will perform periodic inspections of the Contractor's operations. The purpose of these inspections is to evaluate the Contractor's compliance with Contract requirements related to aircraft operations, including compliance with 14 CFR. This will be applicable to the prime Contractor and any subcontractors operating in support of the contract. The Contractor is responsible for identifying and correcting deficiencies in subcontractor operations.

iv. GFR Review -The Contractor makes available to the GFR for review the following:

   a. Pilot records, including pilot certificates, logbooks, effective date and class of medical certificates, the date and results of the last flight review and instrument proficiency check, and any other pertinent information to determine compliance with the Contract requirements.

   b. Aircraft maintenance records.

   c. Airworthiness Certification - All aircraft used under this contract possess a Standard or Restricted FAA airworthiness certificate or as required by the Government an IFC. A copy of the airworthiness certificates available for Government inspection.

v. Maintenance Program - Aircraft used in the performance of this contract will be maintained in accordance with aircraft's FAA airworthiness certificate and 14 CFR.

vi. Aeronautical Regulations - The Contractor operates aircraft in accordance with 14 CFR, United States Navy (USN), United States Air Force (USAF), and local military flying directives (including foreign Government requirements), as applicable. The Contractor complies with DoD requirements for operation of civil aircraft in support of military operations.

vii. Waiver Requests - Each aircraft used in performance of this contract complies with its FAA Airworthiness Certificate regardless of whether or not the flight is a conducted as "Public Aircraft Operation". In the event that the performance requirements of this contract conflict with one or more provisions the aircraft's FAA airworthiness certificate (operations, maintenance, configuration, usage, etc.), the Contractor submits a waiver requesting relief from those contractual

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provisions. Waiver requests are submitted to the Procuring Contracting Officer (PCO) and GFR. The Contractor does not begin flights conducted as "Public Aircraft Operation" that are in conflict with the aircraft's FAA airworthiness certificate without approval in writing by the PCO. An approved NAVAIR IFC, if issued, fulfills the waiver requirements of this paragraph for the specific aircraft configuration or operation documented in the IFC.

viii. Aircraft Modifications - All major alterations incorporated before contract award have sufficient data to determine that the equipment or provisions for the equipment meet the applicable civil, Original Equipment Manufacturer (OEM), or military standards for the type of aircraft concerned. If this data references FAA regulations as the standard, then provide FAA Form 8110-3 signed by FAA Designated Engineering Representatives (DERs) approving that data. Major alterations to aircraft with Restricted and Standard Airworthiness Certificates have been certified as airworthy and properly documented using FAA Form 337 signed in blocks 6 (Conformity) and 7 (Return to Service) by persons authorized under 14 CFR 43, and citing FAA Approved Data in block 8. Unless directed otherwise by the Government, the Contractor removes any major alteration incorporated before contract award that was not certified as airworthy by an appropriately rated FAA certified mechanic or repair station. Any major aircraft alterations (as defined in 14 CFR) performed after contract award, including alterations directed by the government, have been certified as airworthy and properly documented using FAA Form 337 signed in blocks 6 (Conformity) and 7 (Return to Service) by persons authorized under 14 CFR 43, and citing the FAA Approved Data (defined in FAA Order 8900.1) in block 8 and an accompanying aircraft maintenance record entry. This applies to all aspects of the aircraft alteration to include electrical modifications, mechanical modifications, tie-downs, and antennas.

ix. Restricted and Standard Certificates- For aircraft with Restricted and Standard Certificates, the Contractor secures FAA approval for each change to the configuration that is not defined in the aircraft's TYPE Certificate, before the change is used in support of this contract. For each such modification, whether internal or related to the carriage of external stores, the Contractor secures and make available for review, valid FAA approved data. It is recognized that some modifications relate to powered systems that the FAA will certify for captive carriage only. In such cases, the Contractor does not operate the system without having first obtained NAVAIR approval. NAVAIR may perform Electromagnetic Environmental Effects Safety of Flight Testing (E3 SOFT) and other tests before granting that approval.

End of DI-SAFT-81905A

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